

**IN THE HIGH COURT OF JHARKHAND AT RANCHI**  
**A.B.A. No. 1281 of 2020**

Nimesh Anand

... **Petitioner**

**-versus-**

1. The State of Jharkhand

2. Sweety Puspa Toppo

... **Opposite Parties**

**CORAM : HON'BLE MR. JUSTICE ANANDA SEN**  
**THROUGH VIDEO CONFERENCING**

**For the Petitioner :**

Mr. Nilesh Kumar, Advocate

**For the State:**

Mr. Rakesh Ranjan, A.P.P.

**For the O.P. No.2 :**

Mr. Shashi Kant Thakur, Advocate

**4/ 07.08.2020**      Heard learned counsel for the petitioner, the learned A.P.P. for the State and the learned counsel appearing for the opposite party No.2 through Video Conferencing. The lawyers have no objection with regard to the proceeding which has been held through video conferencing today at 10.30 a.m.. They have no complain with respect to the audio and video clarity and quality.

Petitioner is apprehending his arrest in connection with Korrah Police Station Case No.101 of 2019 registered for the offence punishable under Sections 498A, 323, 120B, 506/34 of the Indian Penal Code, pending in the Court of the Additional Chief Judicial Magistrate, Hazaribagh.

There is an allegation against the petitioner that he, being the husband, has tortured the informant and has demanded dowry.

Counsel for the petitioner submits that the informant has left the company of this petitioner with effect from 18.04.2018, whereas the instant first information report has been lodged after one year. He submits that the allegations are vague and general in nature.

Counsel for the opposite party No.2 opposes the prayer for anticipatory bail of the petitioner and submits that there is specific allegation of torture and demand of dowry.

Considering the fact that the informant has left the company of this petitioner and there is a delay of one year in lodging the first information report as also considering the nature of allegations, I feel that this case does not require custodial investigation or trial. Thus, I am inclined to allow this application. Accordingly, the petitioner, namely, Nimesh Anand, is directed to surrender before the Court below within three weeks from today and in the event of his surrender/arrest, the Court below is directed to enlarge him on bail on furnishing bail bond of Rs.10,000/- (Rupees Ten Thousand) with two

**-: 2 :-**

sureties of the like amount each to the satisfaction of the Additional Chief Judicial Magistrate, Hazaribag, in connection with Korrah Police Station Case No. 101 of 2019, subject to the conditions as laid down under Section 438(2) of the Code of Criminal Procedure and with further conditions that: -

- (i) The petitioner will not leave the district without the leave of the Court below;
- (ii) He will appear before the Investigating Officer twice a month till the chargesheet is filed;
- (iii) After the chargesheet is filed the petitioner will appear before the Court below once a month;
- (iv) One of the bailers should be a close relative of the petitioner, having sufficient landed properties within the district of Hazaribag;
- (v) Petitioner will cooperate in the investigation of the case.

If any of the conditions are not fulfilled/violated by the petitioner, the opposite party No.2 / Investigating Officer will be at liberty to approach this Court for modification of this order.

**(Ananda Sen, J.)**